

1. Which of the following constitutes personal data for an insurance company?

- a) Percentage establishing the likelihood of a specific client to purchase a life insurance in the next 6 months
- b) Internal client number from a database table
- c) Percentage of clients that have had incidents falling under their insured events
- d) Leads (contact details of individuals interested in purchasing products) received from an insurance broker

2. In which of the following situations is personal data processed?

- a) Calculation by a bank of percentage of client that have requested assistance with configuring their internet banking
- b) Fixing bugs in a production environment by using a VPN connection
- c) Offering physical archiving solutions to companies
- d) Offering cloud storing solutions for a company's Power Point presentations for clients about its new software solution features and containing technical details

3. Which of the following actions represent processing of personal data?

- a) Holding all data from the group of companies on one server located in Hungary
- b) The IT support team is remediating issues on user laptops by using Remote Desktop Windows
- c) Client A is a client of both company X and company Y (which are part of the same group of companies). The two companies share between themselves data about the client.
- d) Company X is sending monthly reports about each of its clients to its mother-company (company Y)

4. Which of the following entities are data processors?

- a) A company that performs payroll services (payment of salaries to employees)
- b) A bank for payments made through its internet banking application
- c) A training company (that offers training to employees of companies) for attendee details provided by the employer of the attendees
- d) A travel agency for the services offered (travel arrangements) for a company

5. Which of the following entities are data processors?

- a) Two companies sharing potential client contact data (name, telephone number, email address) in order for each of them to perform a marketing campaign for its own products
- b) Two companies that are using the same cloud tenant for their activities
- c) A company providing network machine learning security solutions together with relevant maintenance to its clients
- d) A company providing a bug identification tool that collects diagnosis data from users when an app crashes and sends it to the developer

6. Which of the following entities are independent data controllers?

- a) A call center company that makes calls to the clients of company A as per agreement with company A
- b) Insurance brokers that refer potential clients to an insurance company (sending name, telephone no., email address for those interested in purchasing insurance from the insurance company)
- c) Website that acts as an intermediary for renting/selling apartments held by individuals or legal entities
- d) A training company that offers trainings to employees of companies that have agreements concluded with this training company, as per the training requirements of such companies

7. Which of the following entities are joint data controllers?

- a) Two companies in the same group sharing the potential client data (interested in products offered by the group) and sending marketing communication for their own products.
- b) Joint marketing campaign made by two companies to offer bundled products (e.g. chocolate offered by a chocolate company and flowers offered by a flower shop)
- c) A website created and used by a bookstore and a furniture store selling libraries containing books
- d) Group-wide IT system used by each group company's HR department for its own purpose, with a separate tenant for each company

8. Which of the following represent anonymized data by reference to the described database?

- a) The field name is transformed into "AAA" for all clients in a database including only this attribute and the favorite type of chocolate for each individual
- b) The unique national identification number (in Romanian: CNP) is transformed into a random number in a patient database that contains only this attribute and the disease from which the individual suffers
- c) The email addresses are scrambled within a database containing only email addresses, first and last names of individuals

9. Which of the following represent pseudonymised data?

- a) Replacing the unique national identification number (in Romanian: CNP) with a random number in a database containing 10 attributes about an individual
- b) Hashing with MD5 the email address of a client in the database of an online store
- c) The tokens stored on an user device and used by an internet banking application during the authentication step

10. Who are the data subjects whose personal data is processed in the following scenario/data processing activity: John applies for a loan from a bank and provides to the bank the following requested information: he has relatives working as employees in the bank (in this case yes, his uncle), information about himself, his wife and his children?

- a) The bank
- b) John
- c) John's uncle
- d) John's wife

11. Which of the following are special types of personal data under the GDPR?

- a) Health data about an individual
- b) Political preference of an individual
- c) Financial data, such as bank account, salary
- d) Unique identification number (in Romanian: CNP)

12. Why is the location (country) of the servers holding data important?

- a) Storing data outside the EU may be subject to additional requirements
- b) Storing data outside the EEA is prohibited by the GDPR
- c) A company can only store data outside the EU on the servers of an EU company
- d) The need for standard model clauses may need to be analyzed if data is transferred outside the EU

13. What is the processing basis for the following situation: John Smith purchased a laptop from Retail Store. The Retail store inform John Smith via email when it obtained the laptop from its supplier and details about the delivery process/status?

a) Contract

b) Legitimate Interest

c) Public Interest

d) Consent

14. What is the processing basis for the following situation: John Smith discussed with an insurance broker that he wants an insurance from InsuranceCo Inc, but is not sure about what insurance to opt for. The insurance broker send this information to InsuranceCo Inc in order for InsuranceCo Inc to contact John Smith with details about offers?

a) Consent

b) Contract between the insurance broker and the insurance company

c) Legitimate interest

d) Legal obligation

15. What is the processing basis for the following situation: Company A reviews the manner in which its clients have used its app (history of interactions of clients with the app) in order to create new features for the app and to improve it?

a) Legitimate interest

c) Legal obligation

b) Contract with the client

d) Consent of the client

16. What is the processing basis for the following situation: In Romania, Bank A sends client data to its mother company Mother Bank in order for the Mother Bank to report, in accordance with legal requirements, the data from Bank A and its own client data to the banking authority supervising banks in Romania?

a) Legal obligation

c) Legitimate interest

b) Consent

d) Contract

17. Which of the following represent a proper implementation of the transparency principle for account creation in a mobile app?

a) The information notice is only located in the legal section of an app

b) A link to the information notice is shown in the account registration process next to an un-checked tick box

c) Only an email is sent to the user after the account is created

d) The text of the information notice is shown in the account registration process in a screen. After scrolling down, the user can click next and continue the registration process.

18. How can the right of erasure under the GDPR be implemented properly by Company A?

a) When a client requests deletion of his data from Company A IT systems, in all cases, all data has to be deleted

b) When the retention period for a specific data processing purpose is reached, the data is deleted

c) When an IT system is decommissioned, the data stored in it has to be deleted

d) The data has to be deleted 10 years after the contract with the individual ceased/was terminated/closed

19. How can the right of portability under the GDPR be implemented properly by Company A?

- a) Company A has to send the data to the data controller indicated by the individual making the portability request
- b) Company A has to send the data in paper format to the residence address indicated by the individual making the portability request
- c) Company A has to send the data in the format indicated by the individual making the portability request

20. How can the right of access under the GDPR be implemented properly?

- a) Company A sends to the individual making the access request data from only one of its IT systems that are holding client data
- b) Company A sends to the individual making the access request a list of products he/she holds and a copy of the contract with the individual
- c) Company A sends to the individual making the access request the personal data it holds about that individual

21. Which of the following represent the proper implementation of the data minimization principle?

- a) Each department within Company A has access only to the personal data needed for its professional tasks within Company A
- b) An IT vendor working on FitApp has the credentials for a production environment containing multiple apps of Company A in order to perform maintenance for FitApp
- c) The data from a social media account is automatically backed-up by the application to the cloud storage account of the user

22. Which of the following data processing activities have implemented the data minimization principle properly?

- a) The insurance broker only sends the insurance company name and surname, email address and telephone number of potential clients
- b) For an email newsletter subscription, Company A asked only for email, telephone number, first and last name
- c) The cardiology doctor A from hospital A sends the patient data to the email of cardiology doctor B from hospital B that called him and mentioned the patient is with him for a consultation.

23. Who own copyright in the following scenario: the employees of a company create a software according to the purpose established by their employer (Company A) and no reference to copyright is included in the agreement between employees and Company A?

- a) The employees that worked on the software
- b) Out of the employees, only the software developers that worked on the software
- c) Company A
- d) Both the employees and Company A

24. Who own copyright in the following scenario: individuals that are co-contractors of a company (Company A) (not employees) created a software within the purpose established by Company A. Copyright aspects are not included in the agreement between Company A and such co-contractors?

- a) The individuals (co-contractors of Company A) that worked on the software
- b) From the individuals (co-contractors of Company A), only the software developers that worked on the software
- c) Company A
- d) Both the individuals (co-contractors of Company A) and company A

25. Who owns copyright over the software in the following scenario: Company B created a software for Company A, as per the requirements of Company A? No provisions about copyright are included in the agreement between Company A and Company B.

- a) Company A
- b) Company B**
- c) Company A and Company B jointly

26. Who owns copyright in the following scenario: employees of DevOps Inc together with employees of Company A create a software. No specific clauses about copyright are included in the agreement between Company A and DevOps Inc or in the agreements of Company A/DevOps Inc and their employees?

- a) The employees of DevOps Inc
- b) The employees of Company A and of DevOps Inc
- c) DevOps Inc
- d) Company A
- e) Company A and DevOps Inc**

27. Who own copyright over the app in the following scenario: employees of Company A create module A of the app; employees of DevOps create module B of the app; No specific clauses about copyright are included in the agreement between Company A and DevOps Inc or in the agreements of Company A/DevOps Inc and their employees?

- a) Company A for module A and DevOps Inc for module B**
- b) Company A and DevOps for the entire app (module A and module B)
- c) Company A for the app
- d) DevOps Inc for the app

28. Who owns copyright in the following scenario: individuals that are co-contractors of DevOps Inc create a software as per the business requirements of Company A? No copyright provision is included in the agreement between Company A and DevOps Inc or in that between DevOps Inc and its individual co-contractors.

- a) Company A
- b) DevOps Inc
- c) Company A and DevOps Inc
- d) The individuals that are co-contractors of DevOps Inc**

29. Who owns copyright in the following scenario: an employee of Company A (John Smith) develops a software (based on an idea discussed with his/her friend) during work hours and on the work laptop provided by Company A?

- a) Company A**
- b) John Smith
- c) John Smith's friend
- d) John Smith and his friend

30. What elements should be included in an NDA from the below?

- a) Definition of confidential data
- b) Entity that holds the copyright over the software
- c) Duration of the confidentiality obligation
- d) Exclusions from the definition of confidential data – e.g. publicly available data

31. What is the role of an NDA?

- a) Protects personal data when shared with third parties
- b) Establishes the entity that holds copyright over the created software
- c) Establishes obligations concerning the confidentiality of data

32. From a data protection perspective, how should testing of a software be generally performed?

- a) Using synthetic data
- b) Using anonymized data
- c) Using pseudonymised data
- d) Using production data

33. Which of the below falls within the general scope of a software development agreement?

- a) It establishes the entity that holds copyright over a software
- b) It details the personal data processing
- c) It includes obligations about the data processing, including security of data

34. Which of the following open-source licenses entails maintaining the license terms of the original work when re-using/re-distributing derivative/composed works?

- a) Permissive license – BSD, MIT, Apache Software, License v2
- b) Weak license – LGPL, MPL, CPL
- c) Strong license - GPL2, GPL3, EURL

35. Which of the following open-source licenses entails maintaining the license terms of the original work when re-using/re-distributing this original work?

- d) Permissive license – BSD, MIT, Apache Software, License v2
- e) Weak license – LGPL, MPL, CPL
- f) Strong license - GPL2, GPL3, EURL

36. Which of the following is protected by the copyright over software and databases for a software?

- a) Functionality of the software
- b) Interface design/UX/UI
- c) Compiled source code
- d) User manuals for the software

37. Which of the following is protected by the copyright over software and databases for a software?

- a) Business processes that involve the use of the software
- b) The script that performs a tracking of the user actions on the software interface
- c) A library created and used within the software
- d) The stories written in the collaborative tool to reflect requirements for the software during the development phase

38. Which actions cannot be performed by Company A (that licensed a software for its own use) without the consent of the copyright owner?

- a) Reproduction of software without prior license in this respect
- b) Amending the software to accommodate new business requirements
- c) Creating users for its employees in order to use the software

39. Which actions cannot be performed by Company A (that licensed a software for its own use) without the consent of the copyright owner?

- a) Creating a software with the same functionalities in the same order and format
- b) Distributing the software to other entities in the same group as Company A
- c) Analyzing the software to understand the functioning principles

40. What does copyleft mean?

- a) Transferring copyright to the software development company
- b) Permitting the free use of software by third parties without any obligations
- c) Permitting the free use of software by third parties provided they comply with the initial license terms

41. Which of the below represent requirements when transferring personal data to a data processor?

- a) The individuals are informed about the data transfer
- b) A data processing agreement is signed between the data controller and the data processor
- c) The data processor presents an ISO 27001 certification to the data controller

42. Which of the below represent steps to ensure data quality?

- a) Input validation
- b) Synchronization of data throughout all the IT systems of the company
- c) Checking if data in the databases/on the servers has been corrupted
- d) Regular checks of data for any updating/re-verification needed

43. When a client enrolls through the internet banking app as a new client of a bank (to obtain a bank account), which of the following reflect the minimization principle?

- a. Delete all client data except national unique number (in Romanian CNP), name and email after completion of the enrollment process
- b. Keep the video call performed during the enrollment process and needed for identification as per compliance requirements in a location that can be accessed only by the compliance team
- c. The internet banking app does not save on his/her computer/telephone a copy of the individual's identity card photographed during the onboarding process

44. With respect to which of the below situations should the inform principle be implemented by checking the information notice brought to the attention of data subjects?

- a) When designing part of the app that collects data from individuals
- b) When designing part of the app that collects data from third parties
- c) When designing part of the app that transfers data to third parties

45. Which of the below should be analyzed when Company A is contemplating receiving personal data from Company B?

- a) Whether there is a processing basis for the transfer
- b) Whether an information notice has been provided to individuals about this transfer
- c) Whether a DPA has been concluded about the transfer
- d) Whether the data is accurate

46. When using tracking cookies (e.g. used for marketing) on a website, which of the below should be implemented?

- a) Mechanism for opting out of using tracking cookies
- b) Mechanism for opt-in in terms of collecting tracking cookies
- c) Showing a pop-up banner when the website loads with a pre-ticked box for these cookies
- d) Mechanism for identifying all the devices used by the same user

47. When Bank A is considering granting access to third parties to its API (connected to the core banking system), which of the below should it analyze?

- a) The actual types of personal data which the third party needs access to
- b) The processing basis for transferring the data
- c) Whether the third party has any criminal record
- d) Whether the third party has been properly audited from a security perspective

48. An internet banking app is collecting location data about its users. Which of the below represent actions about that are not in compliance with privacy by design principles?

- a) Collecting location of users for an without informing the users about this collection
- b) Holding location data with a third party cloud service provider without a consent in this respect from the user
- c) Aggregating location data with other user data for marketing purposes without a consent in this respect from the user

49. Which of the below actions are not respecting the Minimize/Separate/Abstract/Hide principles?

- a) Saving clear text passwords/data to user devices
- b) Access of development team in production
- c) Sending via email properly encrypted attachments containing personal data
- d) Segregation of tenants in a multi-tenant environment

50. Which of the below situations are scenarios in which the change management phase of data protection analysis should be triggered with respect to a software?

- a) New IT system connected to this software and received data from this software
- b) New types of data are being added to a new module of the software
- c) One of the employees that had access to the software has resigned

51. Which of the below can represent a type of personal data when correlated with other information?

- a. Static IP address
- b. First and last name
- c. Unique national identification number (in Romania: CNP)
- d. Position in the company an individual works

52. Which of the following is covered by software copyright?

- a. Mobile app source code
- b. Object code
- c. Documentation related to the software developed
- d. Operating system source code

53. The data of which data subjects is protected by data protection legislation?

- a. Employees
- b. Companies
- c. Individuals (natural persons) who are clients of companies
- d. Public authorities

54. What constitutes “weak” copyleft?

- a. Copyleft on the original work
- b. No copyleft on derivative/composed work
- c. Copyleft on all redistributed work
- d. Copyleft on derivative/composed works

55. Which of the statements about NDAs are true?

- a. Confidential data is expressly defined by law and does not need to be detailed in the NDA agreement
- b. An NDA details the persons to whom the NDA applies
- c. The NDA is usually signed before confidential data is accessed by the signatories
- d. The implementation of the clauses in the NDA should be monitored

56. Which of the following represent characteristics of trade secrets?

- a. Not generally known and not readily available to the persons who usually work in the area/field covered by the trade secret
- b. Has an economic value for the company invoking the trade secret
- c. The company having control over the trade secret has taken reasonable steps (under the given situation) to keep such information secret
- d. It is known by the public

57. Which of the following represent technical advantages of open source software:

- a. Faster development
- b. Interoperability
- c. Lack of maturity of software
- d. Lack of stability of software

58. Which of the following statements are true:

- a. Companies hold the copyright over software created by their employees upon its instructions
- b. Companies have to include clauses in labour agreements in order to hold copyright created by their employees upon its instructions
- c. Companies have to include clauses in service agreements in order to hold copyright created by individual contractors upon its instructions
- d. Companies hold the copyright over software created by the individual contractors working on their projects upon its instructions

59. What actions are permitted on copyrighted software?

- a. Back-ups needed for using the software
- b. Analysing and testing a software in order to understand its principles
- c. Permanent or temporary reproduction without agreement with software copyrights holder in this respect (partially or fully)
- d. Distribution or rental of the software, where there is no agreement with the software copyrights holder in this respect

60. What actions are permitted on copyrighted software?

- a. Changing software in order to ensure interoperability
- b. Permanent or temporary reproduction without agreement with software copyrights holder in this respect (partially or fully)
- c. Without right, translation and/or change of a software
- d. Distribution or rental of the software, where there is no agreement with the software copyrights holder in this respect

61. What is protected by copyright in relation to software?

- a. The programming languages
- b. The functionality of software
- c. The ideas and processes at the core/basis of the software
- d. The source code

62. What characteristics have to be fulfilled by a database in order to be protected by copyright?

- a. It has to include a collection of data or any other independent items
- b. The copyright over the data contained has to be held by the owner of the database
- c. The data is placed in a systematic manner
- d. The database has to be accessible through electronic or other means

63. Which of the following represent personal data?

- a. Fingerprints held by a company on its employees
- b. Retina information held by a military laboratory about its employees
- c. IP address of the device of an employee connected to the corporate network
- d. Details held by his/her employer about the flu sickness of an employee

64. Which of the following represent personal data if published in a newspaper today?

- a. Jane likes chocolate
- b. The singer Rihanna likes chocolate
- c. The CEO of Coca-Cola Romania likes chocolate
- d. One of the Ministers of the Romanian Government likes chocolate

65. Which of the following represents processing of personal data?

- a. Collection of identification information for new clients
- b. Transfer of personal data to another company in the same group
- c. Archiving personal data as per the legal obligations on archiving
- d. Collecting IP addresses that cannot be traced back to the actual users

66. For which actions is personal data processed?

- a. Making a payment online with a debit card
- b. Making a payment at a POS in a store
- c. Logging into an online account
- d. Receiving a leaflet on the street for a new Italian restaurant

67. Which of the following are data controllers?

- a. Recruitment agency that identifies candidates based on general criteria provided by the company looking for new employees
- b. Bank collecting data for bank account opening
- c. IT vendor creating reports from the database of a company, as per the instructions of such company
- d. Marketing company performing surveys on the individuals in their database for interests in a new product to be created by a company

68. Which of the following are data processors?

- a. Recruitment agency that collect data from a list of candidates provided by the company looking for new employees
- b. Vendor providing GPS tracking software collecting data and providing reports to a client about their car fleet
- c. Entity assisting a company with storing physical and electronic data as per the archiving legal requirements
- d. IT company providing training to employees of a company after implementation of a new billing IT system developed by such IT company and after uploading production data in the new billing system

69. Which of the following represents rights of individuals whose personal data is being processed according to the GDPR?

- a. Right to be forgotten by the data controller
- b. Right to access their personal data held by the data controller
- c. Right of opposition to data processing by a data controller
- d. Right to access to data of their family members

70. In which of the below scenarios is the minimisation principle applied correctly?

- a. The mobile app of an online store does not collect the picture of its client through the camera of the mobile phone when the client places an order
- b. The unique national identification number (in Romania: CNP) is not collected for making a purchase of shoes on an online store
- c. No address of a client is collected by an online store when the client makes a purchase or creates an account with the online store
- d. The location of an individual is collected when the individual uses navigation application to drive to a specific location.

71. In which of the below scenarios is the need to know principle applied correctly?

- a. The testing environment containing personal data has a unique username ("admin") and password ("admin"), known by everyone in the company.
- b. The accounting application has as username "accounting" and as password "password1234!". These credentials are used only by the accounting team, audit team, product team and vendor team.
- c. For private banking accounts, for a client, only the employee having the client in his/her portfolio can access the data of the client
- d. In a hospital, the data of a patient can be viewed only by the medical staff assisting the patient

72. In which scenario can the data controller be considered liable?

- a. A new employee of the data controller not trained yet by the data controller in terms of data processing sends data on clients to a competitor of the data controller
- b. An employee of the data processor was trained properly in relation to data processing and sent personal data on clients of the data controller to a competitor of the data controller
- c. The data processor did not implement a security measures mentioned in the agreement it had with the data controller
- d. The data controller sent a copy of its core database to its mother-company (shareholder) without having a legal basis for this transfer

73. Which of the following represents transfer or disclosure of personal data by a company to another entity?

- a. An IT vendor views data through a VPN when performing maintenance services for a software used by the company
- b. Excel sheets containing personal data are sent by a company each month to its mother-company (shareholder)
- c. Excel sheets containing monthly profit rates of the company are sent each month to its mother company (shareholder)
- d. When configuring a new software for a company, an IT vendor migrates the historical data from the old software to the new software.

74. Which of the following represents the subsequent processing of personal data for another purpose than the original purpose for which the data was collected?

- a. Creating profiles of clients based on their purchasing activity, having as purpose future marketing campaigns
- b. Reporting obligations to public authorities of transactions performed by clients of a bank
- c. Using personal data to send an item purchased by a client to such client's indicated delivery address
- d. Processing data provided by an individual during the credit loan application process by a bank in order to grant him/her a loan.

75. Which of the following should be analysed from a personal data perspective when a company receives data from a third party (data controller to data controller transfer)?

- a. Legal basis for collection and transfer of data by the third party
- b. Fulfilment of information obligation or consent obtaining in relation to the data processing by the third party and transfer to the company
- c. Number of individuals whose personal data is being transferred
- d. Criminal records of the third party providing the personal data

76. In which scenario can the IT developer company be held liable by the company for which the software was created in case of a data breach?

- a. The IT company did not include a security feature expressly requested by the company and that security feature generated the data breach
- b. The IT company did not include a security feature that is considered best practice and state of the art for software and that security feature generated the data breach
- c. The software was installed by the company on a cloud server and the default admin username ("admin") and password ("admin") was not changed. The data breach occurred by exploiting the weak password and default username.
- d. The company did not stop access to the database within the software when its employees left the company. Thus, a former employee accessed the database and extracted personal data from there.

77. In which scenario can the IT developer company be held liable by the company ABC for which the software was created in case of a data breach?

- a. ABC notified the IT company that it identified a vulnerability in the software and the IT company did not take steps to solve this issues, even if this obligation was included in the IT development agreement between the two entities. The data breach exploited this vulnerability.
- b. ABC notified the IT company about a vulnerability in the software provided by the IT company. The IT company was working on a patch for around 2 months when a data breach occurred by exploitation of that vulnerability. The agreement between ABC and the IT company stated that any vulnerability was to be patched within 1 month as of the date ABC notified the vulnerability to the IT company.
- c. In the press, there were discussions around a vulnerability in the software provided by the IT company and used by ABC. The IT company did not take any steps to patch this vulnerability and was not obliged by its agreement with ABC to do so.
- d. The data breach occurred by using basic SQL injection, which is a well know type of attack. Best practices mention that this type of attack has to be considered when developing software.

78. In which scenario is the data controller liable for lack of compliance of the data processor it uses?

- a. The company chosen by the data controller (which is a bank having 1 million clients) has two employees
- b. No audit was performed by the data controller, even if this has been provided in the agreement between the two as having to be annually performed
- c. No initial analysis was performed by the data controller in relation to the compliance of the data processor with data protection legislation
- d. Data processor uses the data for marketing purposes for other clients of the data processor

79. Which of the following statements are true?

- a. Pseudo-anonymised data can still lead to the identification of an individual or can make an individual identifiable
- b. Pseudo-anonymised data can be obtained by deleting some attributes of an individual that are included in a table containing details of an individual
- c. Profiling of individuals is forbidden by legislation
- d. Any automated decision based on profiling is forbidden by legislation

80. In terms of privacy by design, when developing a mobile application, which of the following should be considered?

- a. Implementation of technical mechanisms to allow exercise of data subject rights under the data protection legislation
- b. Implementation of mechanisms to allow public enforcement entities to access data
- c. Collection of the minimum amount of personal data needed for the purpose of the mobile application
- d. Retention of data for at least 50 years as of the collection of the data for the data collected by the mobile application